

Chapter 2

DEVIATIONS, WAIVERS, AND SPECIAL REQUIREMENTS

2.1. Deviations and Waivers. Deviations and waivers are a departure from established requirements in this manual.

2.2. Passenger Movement Deviations. Do not transport passengers with hazardous materials coded as cargo aircraft only in Table A4.1., column 7 and Table A4.2. Passenger Eligibility “P” Codes. See Attachment 22 for deviation authority, additional passenger information, and supplemental oxygen requirements.

2.3. Packaging and Compatibility Waivers. Waivers are exceptions to the packaging or compatibility requirements of this manual. Safety and risk management of airlift assets are the overriding factors for waiver consideration. Ease of operation, convenience, or program office preference are not reasons for waiver. Service Focal Points will not issue waivers if surface transportation is reasonably available. **(T-0).**

2.3.1. Packaging Waivers. The shipper must obtain a waiver for any hazardous item or packaging not authorized in Attachment 5 through Attachment 13. **(T-0).** Submit waiver requests to the appropriate Service Focal Point (see paragraph 1.2.2.) by letter, message, or telephone. Confirm waivers requested by telephone with a letter or message. Ensure receipt of the letter or message prior to issuing the waiver. The shipper ensures a copy of the waiver accompanies the shipment. The DOD does not have authority to issue packaging waivers to UN specification requirements for items that at any time move outside military controlled modes of transportation. Do not jeopardize safety for convenience or ease of operation. Any waiver that authorizes military airlift of a forbidden hazardous material identified in this manual, either primary or subsidiary hazard, must be coordinated with AFMC/A4RT. **(T-0).** To obtain a waiver, the shipper must:

2.3.1.1. Provide a detailed description of the package, including pertinent test data.

2.3.1.2. Provide the PSN, hazard class, identification number, packing group, and net quantity of the material.

2.3.1.3. Provide a detailed explanation why the established requirements cannot be met.

2.3.1.4. Provide a transportation analysis identifying why surface transportation cannot be effectively used. **(T-0).**

2.3.2. Compatibility Waivers for Military Aircraft. A waiver is required when hazardous materials that are not compatible according to Table A18.1. and/or Table A18.2. require shipping aboard the same military aircraft (see A18.4. for exceptions).

2.3.2.1. Shippers submit waiver requests to their Service Focal Point (see paragraph 1.2.2.) for approval. For Air Force aircraft, the major command (MAJCOM) or Commander of a unified command having operational control of the aircraft during the mission is the waiver approval authority. Marine Corps MAJCOM's currently do not process or approve compatibility waiver request. Compatibility waiver request for Marine Corps aircraft should be sent to Headquarters Marine Corps see paragraph 1.2.2.4. Each service or

MAJCOM establishes policy and procedures for approving compatibility waiver requests. Air Force approval authorities:

2.3.2.1.1. AMC/SEW, (618) 229-0950, DSN 779-0950 (involving Class 1 only)

2.3.2.1.2. AMC/A4TC, (618) 229-4434, DSN 779-4434 (Non-Class 1 only)

2.3.2.1.3. Pacific Air Forces (PACAF) PACAF/A4RD, COMM (808) 449-4196/4192, DSN 315-449-4196/4192. (**Note:** 24/7 contact available via PACAF Command Center (PCC), COM (808) 448-8672, DSN 315-448-8672, DSN Secure 315-449-4301.)

2.3.2.1.4. U.S. Air Forces in Europe (USAFE), 603 AOC/AMD Airlift Requirements, 011-49-6371-405-7166/7146, DSN (314) 478-7166/7146. Outside of normal duty hours(0600-1600Z), call 001-49-6371-47-9292, DSN 314-480-9292 and ask for Requirements Stand-By person. (P4/P5 Local ATOC)

2.3.2.1.5. Sir National Guard (ANG), National Guard Bureau Command Center, COM (301) 981-6001, DSN 858-6001

2.3.2.1.6. AFRC, (478) 327-1718/1715, DSN 497-1718/1715, afrc.a4xr@us.af.mil.

2.3.2.1.7. Air Forces Africa (AFAFRICA), 617 AOC/AMD Airlift Requirements, COM 049-6371-405-1723, DSN 314-480-1723.

2.3.2.1.8. United States Special Operations Command Pacific (SOPAC), SOCPAC/SOJ4, COM:(808) 477-3512 / 477-4353 / 477-5323 or DSN (315) 477-3512 / 477-4353/ 477-5323.when conditions in 2.3.5.1

2.3.2.2. Waiver requests must contain the following information in 2.3.2.2.1. through 2.3.2.2.6.:

2.3.2.2.1. Reason incompatible materials require shipping together.

2.3.2.2.2. Reason for air movement and why other transportation modes cannot be used.

2.3.2.2.3. Statement that items are packaged or prepared as required by this manual and incompatible items are separated by greatest distance possible on the aircraft to reduce hazard in the event of a detonation, fire, or leak.

2.3.2.2.4. Provide intended date of movement, routing, and type of airlift required.

2.3.2.2.5. Provide national stock numbers; model numbers of explosive items; PSNs; hazard classes including divisions and storage compatibility groups as applicable; identification numbers; quantity or net explosive weight (individual and total as applicable); and packaging paragraphs.

2.3.2.2.6. Provide points of contact at origin and destination bases. **(T-0).**

2.3.3. Compatibility Waivers for AMC-Contracted (Commercial) Aircraft. Waivers are not authorized for the movement of incompatible hazardous materials on contracted commercial aircraft. Refer to Attachment 23 for use of DOT-SP 7573 and DOT-SP 9232.

2.3.4. Operational Necessity Waivers. Variations to the requirements of this manual are authorized for a specific mission when strategic and compelling reasons exist. The Service/MAJCOM having operational control of the aircraft approves the operating procedures for specific missions. United States Transportation Command (USTRANSCOM)

approves operating procedures for overall program management of strategic lift assets operated by Air Mobility Command. This paragraph applies to the following conditions:

2.3.4.1. Recovery of downed aircraft. A waiver is required for the packaging/preparation of aircraft/Unmanned Aerial Vehicle (UAV) when not prepared in accordance with the appropriate Technical Order (T.O.).

2.3.4.1.1. The user/owner initiates a waiver requests (for example, Battlespace).

2.3.4.1.2. The user/owner completes a memorandum detailing all the hazards that exist, or no longer exist based on determinations by EOD, other expert(s), and a review of the T.O. Ensure that owner/user addresses every part of the aircraft/UAV that is hazardous as listed in the T.O. which details aircraft/UAV preparation for shipment.

2.3.4.1.3. The user/owner confirms that no leaks, fumes, or potential detonation hazards exist. It is incumbent on the requestor to ensure aircraft/UAVs are safe to move and experts have evaluated entire object.

2.3.4.1.4. EOD inspects and identifies in writing whether explosive material is present or has been cleared.

2.3.4.1.5. The Installation Transportation Officer (ITO) then creates a memo describing the hazards that require certification, and address hazards not requiring certification.

2.3.4.1.6. Technically capable personnel (user/ITO) assess the packaging and ensure it will contain/hold the aircraft/UAV. **(T-0)**. Describe in detail how the item is packaged for air transport. (For example, This UAV is packed in an Aircraft Coffin (a case), weighing 1508 kilograms and total cube is 14 cubic meters. The case is considered airtight when it is closed, sealing the contents inside.)

2.3.4.1.7. If it is determined hazard(s) exist but cannot be properly certified in accordance with the aircraft/UAV T.O., staff the memorandums to the servicing MAJCOM. The servicing MAJCOM staffs the waiver request to the MAJCOM with operational control of the transport aircraft.

2.3.4.1.8. The ITO or Customs official notifies the DOD Customs Program Manager, USTRANSCOM J5J4-PT for clearance of the transport aircraft to its destination within the Continental United States (CONUS).

2.3.4.2. Emergency rescue operations.

2.3.4.3. Movement of portable generators to support critical and key functions where power has been disrupted.

2.3.4.4. Movement of fueled SE to replace inoperative equipment supporting an ongoing mobility exercise or operational plan. Equipment may be transported with fuel not to exceed one-half tank.

2.3.4.5. Shipments in accordance with the requirements of AFI 11-289, *Phoenix Banner, Silver, and Copper Operations*.

2.3.5. Intelligence or Criminal Investigations. Variations to the requirements of this manual are authorized for airlift of hazardous materials involved in intelligence or criminal investigations. Qualified personnel of those agencies responsible for the cargo certify that all safety precautions have been taken to transport the materials safely. The shipper ensures compliance with as many requirements of this manual as possible. This authorization is valid only for movement out of an austere environment. At the first secure in-route airfield, prepare the cargo according to this manual or paragraph 2.3.1.

2.4. DOT Special Permits. A DOT special permit is authority to deviate from the requirements of 49 CFR Parts 100-199. Use special permits as authority for shipment by military controlled air movement, if applicable. Follow all requirements of the permit.

2.4.1. The shipping activity provides a copy of the permit for each shipment. If the approval date on the permit has expired, but a renewal has been applied for include a copy of the DOT timely filing continuation of use letter available on SafetyNet for DOD owned special permits. If the timely filing letter is not available, enter "Renewal Requested, Current Special Permit Still Valid". Place this statement on the permit after verifying renewal request with the Service Focal Point.

2.4.2. The permit must accompany the cargo in the Defense Transportation System. **(T-0).**

2.4.3. Maintain a copy of the permit at each facility where it is used in connection with the transportation of the hazardous material.

2.4.4. DOT special permits may not identify exceptions to international dangerous goods regulations and may require additional approvals for uninterrupted international transportation outside of military installations.

2.4.5. Forward requests for new permits or copies of existing permits according to the DTR 4500.9-R, Part II.

2.5. Competent Authority Approvals (CAA). A CAA is an approval issued by a national agency responsible under its national law for the regulation of hazardous materials transportation. These may also be referred to as "Special Approvals." The U.S. Competent Authority is the U.S. Department of Transportation (DOT) Associate Administrator. CAAs are used for both domestic and international shipment. All approvals must be in English. **(T-0).**

2.5.1. Packaging CAAs. A CAA may be issued for packaging or other transportation requirements when specified by the responsible national agency for the originating shipment. These include CAAs issued by the U.S. Competent Authority and foreign agencies.

2.5.1.1. Use the CAA as the packaging authority for military air shipment.

2.5.1.2. Follow all requirements of the approval.

2.5.1.3. The shipping activity provides a copy of the CAA for each shipment.

2.5.1.4. The CAA must accompany the cargo in the Defense Transportation System (attach copy to the Shipper's Declaration for Dangerous Goods). **(T-0).**

2.5.1.5. Request copies of existing CAAs according to the DTR 4500.9-R, Part II.

2.5.2. Explosive Hazard Classification and Approvals. The Associate Administrator may also issue explosive hazard classification approval(s). These may also be referred to as CAAs or

EX letters. See paragraph A3.3.1.4. for applicability of DOT and foreign nation issued explosive classification approvals for military air shipments. If packaging requirements are included as part of a DOT explosive hazard classification approval, use the CAA or EX number as authority for air shipment. Attach a copy of the approval document to the Shipper's Declaration of Dangerous Goods (see Table A17.1.). Explosive hazard classification and approval(s) without packaging instructions cannot be used as a packaging certification reference. For the retrograde movement of Foreign Military Sales (FMS) procured explosives, the FMS purchasing country is required to obtain explosive hazardous class approvals from the DOT.

2.5.3. Requests for CAAs. Follow the procedures outlined in DLAR 4145.41/AR 700-143/NAVSUPINST 4030.55/AFMAN 24-210_IP/MCO 4030.40, *Packaging of Hazardous Material*, to request a CAA from the U.S. Competent Authority. For FMS, the FMS purchasing country follows the procedures outlined in the Defense Security Cooperation Agency (DSCA) manual DCSA 5105.38-M, *Security Assistance Management Manual (SAMM)*, Chapter 7, Paragraph C7.16.

2.6. DOD Certification of Equivalency (COE). A COE is a certification that the proposed packaging equals or exceeds the requirements of 49 CFR Parts 100-199. Use COEs as authority for shipment by military air, if applicable. Follow all requirements of the approval.

2.6.1. The shipping activity provides a copy of the COE for each shipment.

2.6.2. The COE must accompany the cargo in the Defense Transportation System. **(T-0).**

2.6.3. A COE may be used between a domestic Aerial Port of Embarkation (APOE) and a domestic Aerial Port of Debarkation (APOD) or on a military controlled aircraft from a non-domestic APOE to a domestic APOD. Refer to DTR 4500.9-R, Part II for other authorized COE modes of transportation.

2.6.4. Do not use COEs for international commercial air shipments unless the item is exempted from UN specification requirements (see paragraph A.3.1.1.1.) or the item, at all times, is transported by military controlled airlift including Civil Air Reserve Fleet. COE's may not be recognized by all countries and may require additional approvals for uninterrupted international transportation outside of military installations.

2.6.5. COE issuing officials, as identified in the DTR 4500.9-R, Part II, follow guidance in DLAR 4145.41/AR 700-143/NAVSUPINST 4030.55/AFMAN 24-210_IP/MCO 4030.40, *Packaging of Hazardous Material*, for approving COEs. Any COE that approves military airlift of a hazardous material that is forbidden by this manual, either primary or subsidiary hazard, must be coordinated with the respective Service Focal Point and AFMC/A4RT. **(T-0).**

2.7. Limited and Excepted Quantities. Use good quality packaging specified in Attachment 19 to ship small quantities of hazardous materials aboard military aircraft. Personnel may use UN specification packaging even though it's not required.

2.8. Complying with Special Cargo Requirements. Ensure any Inhalation Hazard Zone A material (as identified by Special Provision 1 in Table A4.1., column 7); Class 1, compatibility group K; Fissile Class III Radioactive Materials; infectious substances and biological research

materials requiring a technical escort comply with the extensive protective measures outlined in Attachment 24.